

		choice of venue is regarded as presumptively correct, and a corporate defendant has the burden of negating the propriety of venue as laid on all possible alternative grounds. (<i>Tokuzo Shida v. Japan Food Corp.</i> (1960) 185 Cal.App.2d 443, 447-448.) Here, Defendants do not proffer admissible showing that a lease was entered into in Missouri and/or that the parties agreed to apply Missouri law. California has a public interest in adjudicating liability of California corporations in California. Based on the current state of the admissible evidence before the court, Defendants have not sufficiently shown that the private and public factors weigh in favor of a forum outside of California. The motion is therefore DENIED without prejudice. Moving Defendants to give notice.
11	Jackson vs. City of Laguna Niguel, California	<u>Motion for Attorneys' Fees</u> The court DENIES Petitioner MICHELLE R. JACKSON's motion for an award of attorney's fees in the amount of \$428,518.00 against Respondent CITY OF LAGUNA NIGUEL, CALIFORNIA (the "City"). Evidentiary Objections: The City's objection number 7 to the declaration of Michelle Jackson and objection number 5 to the declaration of Carlos Perez are SUSTAINED; the remainder of the City's evidentiary objections are OVERRULED. Petitioner's objection number 2 to the declaration of Richard Egger is SUSTAINED; the remainder of Petitioner's evidentiary objections are OVERRULED. RJN: The City's request for judicial notice is GRANTED as to Exhibits 1 and 3 (Evid. Code § 452(d) and DENIED as to Exhibit 2, which is not relevant to the court's analysis. (<i>Sweeney v. California Regional Water Quality Control Board.</i> (2021) 61 Cal.App.5th 1093, 1118, fn. 5 ["Matters

otherwise subject to judicial notice must be relevant to an issue in the action.”].)

Background

Until December 2023, the City used an at-large method of election for its City Council. (Pet’n and Answer at ¶ 10.) On 6/16/23, Petitioner sent a certified letter to the city clerk requesting the elimination of the at-large system, asserting it was racially discriminatory. (Jackson Decl., Exh. 2.)

Pursuant to Elections Code section 10010(e)(3), the City had 45 days from receipt of Petitioner’s letter in which to announce its intention to transition from an at-large method of election to a district-based system. During this “safe harbor” period, Petitioner could not bring an action on behalf of any prospective plaintiff under the California Voting Rights Act (CVRA). (Pet’n and Answer at ¶ 15.) The City availed itself of the safe harbor provision and adopted a resolution declaring its intention to transition from at-large to by-district elections. (Jackson Decl., Exh. 3.) On 1/16/24, the City adopted a resolution changing its at-large system to a by-district election system. (Pet’n and Answer at ¶ 19.)

Subsequently, on 1/24/24, Petitioner submitted a request for payment of attorney’s fees and demographer costs under Elections Code section 10010. (Egger Decl., ¶ 4 and Exh. C.) Petitioner requested a total of \$37,894.98, as limited by the statutory cap.

The City responded by letter dated 2/23/24 under Elections Code section 10010(f), which authorizes a City to request additional substantiation to corroborate the claimed costs. (Egger Decl., ¶ 5 and Exh. D.) The City requested additional documentation for a variety of reasons, including that the 1/24/24 letter did not identify the prospective plaintiff or provide evidence or a statement of the prospective plaintiff’s characteristics in order to evidence standing for purposes of Section 10010. The parties continued to communicate, but Petitioner did not provide the prospective plaintiff information or all of the information requested regarding the alleged demographer. Petitioner filed this petition on 5/28/24.